

LEGISLATURE OF NEBRASKA  
ONE HUNDRED NINTH LEGISLATURE  
SECOND SESSION

**LEGISLATIVE BILL 771**

Introduced by Ballard, 21.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to transportation; to amend section 75-327,
- 2 Reissue Revised Statutes of Nebraska; to change provisions relating
- 3 to dynamic pricing used by transportation network companies during
- 4 states of emergency declared by the Governor; and to repeal the
- 5 original section.
- 6 Be it enacted by the people of the State of Nebraska,

1       **Section 1.** Section 75-327, Reissue Revised Statutes of Nebraska, is  
2 amended to read:

3       75-327 (1) A participating driver shall not provide a ride unless it  
4 is a prearranged ride. No person shall be a participating driver for a  
5 period of more than twelve hours during each twenty-four-hour period.

6       (2)(a) A transportation network company may offer service for  
7 compensation, no charge, or suggested compensation.

8       (b) Except as provided in this section, transportation network  
9 companies shall not be subject to rate regulation by the commission and  
10 shall not be subject to provisions relating to rates and charges  
11 prescribed in sections 75-101 to 75-158.

12       (c) A transportation network company shall file with the commission  
13 the rates it uses to determine any compensation or suggested compensation  
14 on its online-enabled application or platform, including any use of  
15 dynamic pricing. The transportation network company shall keep the rate  
16 filing current and shall charge rates consistent with the rates it files  
17 with the commission.

18       (d) The following requirements apply if the transportation network  
19 company uses dynamic pricing through its online-enabled application or  
20 platform:

21       (i) The transportation network company's online-enabled application  
22 or platform shall provide clear visible indication that dynamic pricing  
23 is in effect prior to the passenger requesting a ride;

24       (ii) The transportation network company's online-enabled application  
25 or platform shall include a feature that requires the passenger to  
26 expressly confirm that he or she understands that dynamic pricing will be  
27 used in order for the ride request to be completed;

28       (iii) The transportation network company's online-enabled  
29 application or platform shall provide a fare estimator that enables the  
30 passenger to estimate the cost under dynamic pricing prior to requesting  
31 the ride; and

1       (iv) At the discretion of the Governor, dynamic pricing is permitted  
2 in any political subdivision that is specified as the subject of a state  
3 of emergency declared by the Governor unless specifically prohibited by  
4 the Governor in the emergency proclamation or by an executive order. Any  
5 prohibition on dynamic pricing shall be for the time period specified by  
6 the Governor in the emergency proclamation or in the executive order.  
7 Except as otherwise provided, dynamic pricing is permitted in any  
8 political subdivision that is not specified as the subject of a state of  
9 emergency declared by the Governor. Dynamic pricing shall not be  
10 permitted during any state of emergency declared by the Governor.

11       (3) Upon completion of a prearranged ride, a transportation network  
12 company shall transmit an electronic receipt to the passenger's email  
13 address or online-enabled application documenting the following:

- 14       (a) The point of origin and destination of the prearranged ride;  
15       (b) The total duration and distance of the prearranged ride;  
16       (c) The total amount paid, if any, including the base fare and any  
17 additional charges incurred for distance traveled or duration of the  
18 prearranged ride; and  
19       (d) The driver's first name.

20       **Sec. 2.** Original section 75-327, Reissue Revised Statutes of  
21 Nebraska, is repealed.